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# Arizona Record Relief Sealing, Set-Aside & Marijuana Expungement — Agent Training Reference

A complete operational knowledge base for clearing criminal records in Arizona's THREE-remedy system: record sealing (A.R.S. § 13-911, effective 1/1/2023), set-aside of a conviction (A.R.S. § 13-905), and true expungement of certain marijuana offenses (A.R.S. § 36-2862, Prop 207) — with eligibility, waiting tiers, exclusions, the Certificate of Second Chance, procedure, fees, and record requests.

|                           |                                                                                    |
|---------------------------|------------------------------------------------------------------------------------|
| <b>Prepared for</b>       | LegalEase / Expungement.ai — Wilma assistant                                       |
| <b>Coverage</b>           | State of Arizona (the convicting/charging court; DPS criminal history)             |
| <b>Primary statutes</b>   | A.R.S. § 13-911 (sealing); § 13-905 (set-aside); § 36-2862 (marijuana expungement) |
| <b>Controlling change</b> | SB 1294 (2021) created § 13-911 sealing, effective January 1, 2023                 |
| <b>Document type</b>      | Internal training / retrieval reference — not legal advice                         |
| <b>Currency</b>           | Reflects A.R.S. Title 13 as amended through the 2024–2025 sessions                 |

## VERIFY BEFORE RELYING

Arizona has **THREE** distinct remedies and the agent must pick the right one. (1) **SET-ASIDE** (§ 13-905) vacates the judgment of guilt and releases penalties, but the record stays **PUBLICLY VISIBLE** with a “set aside” annotation — it is not sealing or expungement, and there is no waiting period. (2) **RECORD SEALING** (§ 13-911, effective 1/1/2023) hides the record from public view and lets the person deny the arrest/conviction in most contexts, after a waiting period that depends on the offense class (2–10 years). (3) **True EXPUNGEMENT** exists **ONLY** for certain marijuana offenses under § 36-2862 (Prop 207), with no waiting period and fees waived. Each has its own exclusion list, and DUI and MVD records persist regardless. The agent must map the offense to its class and the correct remedy, and verify the current statute before relying on any rule.

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## How the agent should use this document

Arizona is a three-remedy state, and the agent's first job is to match the right tool to the situation. (1) **Marijuana offense within Prop 207** ( $\leq 2.5$  oz,  $\leq 6$  plants, paraphernalia) → EXPUNGEMENT under § 36-2862, which truly erases it, with no wait and no fee. (2) **Other eligible conviction, enough time has passed** → SEALING under § 13-911, which hides it from public view; apply the waiting tier by offense class. (3) **Conviction where the wait hasn't passed, or that is sealing-ineligible but set-aside-eligible** → SET-ASIDE under § 13-905 for immediate relief (vacates guilt, restores firearm rights for non-serious offenses), understanding the record stays visible. Many people pursue set-aside first, then seal later. The agent should (1) identify the offense and class; (2) check the Prop 207 marijuana path first; (3) test sealing eligibility and the waiting tier; and (4) offer set-aside where sealing isn't yet available or the offense is sealing-ineligible.

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### Statutory shorthand used throughout

|                        |                                                                                 |
|------------------------|---------------------------------------------------------------------------------|
| A.R.S. § 13-911        | Record SEALING of arrest, conviction, and sentencing records (eff. 1/1/2023)    |
| A.R.S. § 13-905        | SET-ASIDE of a conviction; release from penalties; Certificate of Second Chance |
| A.R.S. § 36-2862       | EXPUNGEMENT of certain marijuana offenses (Proposition 207)                     |
| A.R.S. § 13-910        | Restoration of civil rights and firearm rights                                  |
| A.R.S. § 13-105        | Defines DANGEROUS OFFENSE (sealing- and set-aside-excluded)                     |
| A.R.S. § 13-705        | Defines DANGEROUS CRIME AGAINST CHILDREN (sealing-excluded)                     |
| A.R.S. § 13-706        | Defines SERIOUS / violent / aggravated felony (sealing-excluded)                |
| § 13-3821 / § 13-118   | Sex-offender registration / finding of sexual motivation (excluded)             |
| Cert. of Second Chance | Issued with many set-asides; eases occupational licensing                       |

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# 1. Eligibility rules (the three remedies)

Three separate remedies, each with its own eligibility logic.

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## Remedy 1 — Record sealing (A.R.S. § 13-911)

The broadest modern relief, effective January 1, 2023:

- **Convictions** — a person convicted of an eligible offense may seal the arrest, conviction, and sentencing records after completing all NONMONETARY terms of the sentence and the applicable waiting period (by offense class).
- **Dismissals / acquittals** — a person whose charges were dismissed, who was acquitted, or whose charge was reduced to a lesser eligible offense may petition to seal, generally right away.
- **Effect** — records are hidden from public view; the person may state in most contexts that the arrest/conviction did not occur (with exceptions for certain sensitive positions/licenses). Law enforcement, courts, and certain agencies still have access.
- **Subsequent felony** — a person who sealed records and later commits a felony may seal the later case only after that offense's waiting period PLUS an additional five years.

## Remedy 2 — Set-aside of a conviction (A.R.S. § 13-905)

- Available to most people convicted of a criminal offense, on fulfillment of the conditions of probation or sentence and discharge by the court — **no waiting period**.
- **Effect** — the judgment of guilt is vacated and the person is released from penalties and disabilities, but the record stays PUBLIC with a “set aside” annotation; the conviction can still be used in a later prosecution and remains on background checks.
- **Firearm rights** are restored on set-aside except for a serious offense (§ 13-706).
- **Certificate of Second Chance** may be granted with the set-aside, easing occupational licensing.

## Remedy 3 — Marijuana expungement (A.R.S. § 36-2862, Prop 207)

- True EXPUNGEMENT — the record is erased and accessible only to law enforcement/courts in limited situations.
- Limited to Prop-207 marijuana conduct: possessing/consuming/transporting **2.5 ounces or less** ( $\leq 12.5$  g concentrate); possessing/cultivating **no more than six plants** at a primary residence for personal use; and associated paraphernalia.
- **No waiting period**, and filing **fees are waived**; applies to arrests, charges, adjudications, and convictions.

### AGENT GUIDANCE

*Check the marijuana path first — if the offense fits § 36-2862, expungement is the strongest, fastest, free remedy. Otherwise test sealing (§ 13-911) and the waiting tier; use set-aside (§ 13-905) for immediate relief or when sealing isn't available.*

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*Remember the sequence strategy: many petitioners get a set-aside now and seal later once the waiting period passes.*

## 2. Waiting periods

Only SEALING has class-based waits. Set-aside has none, and marijuana expungement has none. Sealing waits run from completion of the NONMONETARY sentence conditions and discharge.

| Remedy / offense level              | Statute   | Waiting period                  |
|-------------------------------------|-----------|---------------------------------|
| Marijuana expungement               | § 36-2862 | None                            |
| Set-aside (any eligible conviction) | § 13-905  | None (after discharge)          |
| Sealing — dismissal / acquittal     | § 13-911  | None (right away)               |
| Sealing — Class 2 or 3 misdemeanor  | § 13-911  | 2 years                         |
| Sealing — Class 1 misdemeanor       | § 13-911  | 3 years                         |
| Sealing — Class 4, 5, or 6 felony   | § 13-911  | 5 years                         |
| Sealing — Class 2 or 3 felony       | § 13-911  | 10 years                        |
| Sealing — subsequent felony         | § 13-911  | Class wait + 5 additional years |

Two timing points matter for sealing. First, the clock starts when the person completes the NONMONETARY conditions of probation or the sentence and is discharged — but the person must also have paid all fines, fees, and restitution to actually qualify (outstanding restitution is a common bar). Second, the subsequent-felony rule stacks: someone who sealed an earlier record and then commits a new felony must wait that new offense's class period PLUS five more years before sealing it. Set-aside, by contrast, can be sought as soon as the person is discharged, which is why it is the immediate-relief option while a sealing wait runs.

### AGENT GUIDANCE

*Apply the sealing tiers by class: 2 yrs (Class 2/3 misd), 3 yrs (Class 1 misd), 5 yrs (Class 4–6 felony), 10 yrs (Class 2/3 felony); dismissals/acquittals can seal immediately.*

*Confirm all fines/fees/restitution are paid before counting a sealing wait as satisfied — and offer set-aside in the meantime, since it has no wait.*

### 3. Disqualifying / excluded offenses

Each remedy has its own exclusion list. Serious, dangerous, and sexual offenses are broadly excluded from both sealing and set-aside.

#### Not eligible for SEALING (§ 13-911(O))

- A **dangerous offense** as defined in § 13-105.
- A **dangerous crime against children** as defined in § 13-705.
- A **serious offense** or **violent or aggravated felony** as defined in § 13-706.
- Any offense with an element of the **discharge, use, or threatening exhibition of a deadly weapon** or dangerous instrument, or the **knowing infliction of serious physical injury**.
- Any **Class 1 felony** (in Arizona, first- and second-degree murder).
- Offenses requiring sex-offender registration (§ 13-3821) or with a sexual-motivation finding (§ 13-118).

#### Not eligible for SET-ASIDE (§ 13-905(K))

- A **dangerous offense**; an offense requiring registration under § 13-3821; an offense with a sexual-motivation finding under § 13-118.
- A **felony in which the victim is a minor under fifteen**.
- Certain serious driving/traffic offenses (note: SB 1249 (2021) removed many traffic offenses from the set-aside exclusion).
- An offense involving the infliction of serious physical injury or the use of a deadly weapon/dangerous instrument.

#### Marijuana expungement (§ 36-2862) scope limits

- Only the Prop-207 conduct qualifies ( $\leq 2.5$  oz /  $\leq 6$  plants / paraphernalia). A marijuana SALE offense is NOT expungeable under § 36-2862, though it may be SEALABLE under § 13-911 after the waiting period.

#### Limits that apply across remedies

- **DUI and MVD records persist.** A set-aside or sealing does not rewrite ADOT/MVD driving history; DUI priors remain usable for enhancement.
- **Out-of-state / federal** convictions are not reachable by Arizona's remedies.
- **Victim notification.** Prosecutors and victims have statutory notice and input rights.

#### VERIFY BEFORE RELYING

The exclusion lists are defined by cross-referenced statutes (§§ 13-105, 13-705, 13-706, 13-3821, 13-118) and the sealing law is recent (eff. 1/1/2023) and still being interpreted; offense-class mapping is decisive. The agent must classify the Arizona offense, screen it against the correct remedy's exclusions, and verify the current statute before declaring eligibility.

**AGENT GUIDANCE**

*Screen against the remedy that's being used: dangerous (§ 13-105), serious/violent/aggravated (§ 13-706), dangerous crime against children (§ 13-705), deadly-weapon or serious-injury element, and Class 1 felonies are out for sealing; the set-aside list overlaps but adds victim-under-15.*

*Note the DUI/MVD carve-out every time — even a granted set-aside or sealing leaves ADOT records and DUI prioritability intact.*

## 4. Case outcome rules

Offense type and disposition drive which remedy applies. This table is the agent's primary routing logic for Arizona.

| Case outcome / offense                          | Remedy                  | Wait                               | Effect                 |
|-------------------------------------------------|-------------------------|------------------------------------|------------------------|
| Marijuana ≤ 2.5 oz / ≤ 6 plants / paraphernalia | Expungement (§ 36-2862) | None                               | Erased                 |
| Dismissed / acquitted (eligible)                | Sealing (§ 13-911)      | None                               | Hidden from public     |
| Class 2/3 misdemeanor conv.                     | Sealing                 | 2 yrs                              | Hidden from public     |
| Class 1 misdemeanor conv.                       | Sealing                 | 3 yrs                              | Hidden from public     |
| Class 4–6 felony conv.                          | Sealing                 | 5 yrs                              | Hidden from public     |
| Class 2/3 felony conv.                          | Sealing                 | 10 yrs                             | Hidden from public     |
| Eligible conviction (immediate)                 | Set-aside (§ 13-905)    | None                               | Vacated, still visible |
| DUI conviction                                  | Set-aside / sealing     | Set-aside: none;<br>seal: by class | MVD record persists    |
| Dangerous / serious / sex / Class 1 felony      | —                       | Not eligible                       | —                      |

The effects differ sharply and the agent must state them precisely. **Expungement** (§ 36-2862) erases the marijuana record. **Sealing** (§ 13-911) hides the record from public view and lets the person deny the arrest/conviction in most contexts, while criminal-justice agencies and certain sensitive employers retain access. **Set-aside** (§ 13-905) vacates the judgment of guilt and releases penalties/disabilities, but the conviction remains publicly visible with a “set aside” annotation, can be used as a prior, and (except for a marijuana SALE sealed under § 13-911(H), where the person must still disclose on applications) does not let the person deny it. None of the three rewrites ADOT/MVD records.

### AGENT GUIDANCE

*Be precise on effect: erased (marijuana), hidden-and-deniable (sealing), or vacated-but-visible (set-aside). Don't describe a set-aside as making the record disappear.*

*For someone who wants the conviction truly out of public view, sealing is the goal; set-aside is the bridge until the sealing wait passes.*

## 5. Required forms

Arizona uses Judicial Branch / Supreme Court (AOC) petition forms filed in the court that handled the case (superior, justice, or municipal). Each remedy has its own petition and a companion order. The current form numbers are below.

| Form no.                      | Form / filing                                                           | Use                                                                                                                                                                                                                                  |
|-------------------------------|-------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>AOCCRSL1F-091424</b>       | Petition to Seal Criminal Case Records (§ 13-911)                       | Seal arrest, charging, and conviction records. Companion 5-page instructions AOCCRSL1I-091424. Shows nonmonetary conditions complete, all monetary obligations paid, and the class waiting period elapsed; served on the prosecutor. |
| <b>AOCCRSL2F-091424</b>       | Order Regarding Petition to Seal (§ 13-911)                             | Proposed order for the judge: grants, denies, or dismisses; on grant directs the clerk and DPS to seal and notifies the prosecutor. 3-year refile bar after a denial.                                                                |
| <b>AOC CR41FORM31A-010120</b> | Application to Set Aside Conviction (§ 13-905)                          | Vacates the judgment of guilt; may request a Certificate of Second Chance and firearm-rights restoration. Five sections plus a self / authorization signature fork.                                                                  |
| <b>AOC CR41FORM31B-092921</b> | Order re Set Aside & Restoration of Firearm Rights (§§ 13-905 & 13-910) | Proposed order carrying the Certificate of Second Chance and firearm-restoration findings. Note: the order revision (092921) is newer than the application (010120).                                                                 |
| <b>AOC CREM2F-071221</b>      | Petition to Expunge Marijuana-Related Offense Records (§ 36-2862)       | Prop-207 conduct only ( $\leq 2.5$ oz / $\leq 6$ plants / paraphernalia). No fee, no waiting period. Dual petitioner / attorney signature blocks.                                                                                    |

Each filing is made in the court of conviction or charge and identifies the case number, the offense and class, the disposition, and the statutory basis. The sealing petition must show the nonmonetary conditions are complete and the waiting period has passed; the set-aside application shows discharge from probation or sentence; the marijuana expungement petition shows the offense fits § 36-2862. Prosecutors and victims receive notice and may respond, and the court may hold a hearing before ruling.

### AGENT GUIDANCE

Cite the form by number: sealing is AOCCRSL1F-091424 (with order AOCCRSL2F); set-aside is AOC CR41FORM31A with order CR41FORM31B; marijuana expungement is AOC CREM2F. File in the court that handled the case.

On the set-aside application, request the Certificate of Second Chance and firearm-rights restoration where eligible — and note the application form (010120) is a revision behind its own order (092921), so confirm the current version at [azcourts.gov](http://azcourts.gov) before filing.



## 6. Filing instructions

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- 1 Get the record.** Pull the Arizona DPS criminal history (and the court docket) to confirm each charge, the offense class, the disposition, and the sentence-completion/discharge dates.
- 2 Pick the remedy.** Marijuana within Prop 207 → § 36-2862 expungement; eligible conviction with the wait satisfied → § 13-911 sealing; eligible conviction for immediate relief or sealing-ineligible → § 13-905 set-aside. Screen the exclusions for the chosen remedy.
- 3 Confirm prerequisites.** For sealing, all nonmonetary conditions complete, all fines/fees/restitution paid, and the class waiting period elapsed. For set-aside, discharge from probation/sentence. For marijuana, that the offense fits § 36-2862.
- 4 Complete the petition and proposed order** for the chosen remedy, citing the statute, the case number, and the offense/class.
- 5 File in the court that handled the case** (superior, justice, or municipal). Marijuana expungement filing fees are waived; sealing/set-aside may carry a fee or fee waiver.
- 6 Notice to the prosecutor and victim.** Serve the prosecutor; victims have statutory notice and input rights — do not skip this, as it risks denial or delay.
- 7 Hearing / ruling.** The court may rule on the petition with or without a hearing after any prosecutor/victim response; if granted, the order directs sealing, set-aside, or expungement.

### AGENT GUIDANCE

*File in the court of conviction/charge. Marijuana expungement is free; for sealing, make sure every monetary obligation is satisfied before filing.*

*Always handle prosecutor service and victim notice — missing the victim-notice step is a common cause of denial or delay in Arizona.*

## 7. Court-specific quirks

- **Three remedies, three effects.** Expungement (marijuana, erased), sealing (hidden), set-aside (vacated but visible). Using the wrong word with a client causes real confusion.
- **Sealing is new (1/1/2023).** Created by SB 1294 (2021); pre-2023 guidance that says Arizona has “no expungement” is now incomplete.
- **Set-aside leaves an annotation.** The conviction still appears, marked “set aside” — it is not hidden and can be a prior.
- **Sequence strategy.** Set-aside now (no wait) for immediate benefit, then seal once the class waiting period passes.
- **Marijuana sale is different.** Not expungeable under § 36-2862, but may be sealable under § 13-911 — and a sealed sale still requires disclosure on applications under § 13-911(H).
- **Firearm rights.** Set-aside restores firearm rights except for serious offenses (§ 13-706); see also § 13-910 restoration.
- **DUI / MVD persist.** ADOT driving records and DUI priorability survive any of these remedies.
- **Subsequent-felony stacking.** Sealing a later felony after an earlier sealing requires the class wait plus five more years.
- **Certificate of Second Chance.** Often issued with a set-aside; helps with occupational licensing barriers.

### AGENT GUIDANCE

*The most common Arizona mistake is conflating the three remedies — always name which one and what it does. Lead with marijuana expungement if it fits, then sealing, then set-aside. Flag the DUI/MVD carve-out and the marijuana-sale nuance proactively; both surprise people.*

## 8. Fee information

| Item                              | Amount                | Note                                   |
|-----------------------------------|-----------------------|----------------------------------------|
| Marijuana expungement (§ 36-2862) | \$0                   | Filing fees waived by statute          |
| Record sealing (§ 13-911)         | Court filing fee      | Fee waiver may be available            |
| Set-aside (§ 13-905)              | Court filing fee      | Fee waiver may be available            |
| Certificate of Second Chance      | Included w/ set-aside | No separate petition needed            |
| DPS criminal history record       | DPS fee               | To confirm offenses and dates          |
| Attorney fees (if represented)    | Varies                | Not required; legal-aid clinics assist |

Cost is modest and the marijuana path is free. Expungement of a Prop-207 marijuana offense under § 36-2862 carries no filing fee. Sealing and set-aside petitions carry the court's ordinary filing fee, but a fee waiver (deferral) may be available for those who cannot afford it. The main other cost is obtaining the DPS criminal history to confirm the offenses, classes, and dates, plus any attorney fees if the person chooses representation. Because sealing requires all monetary obligations (fines, fees, restitution) to be satisfied first, resolving outstanding court debt is often the practical prerequisite rather than the filing fee itself.

### AGENT GUIDANCE

*Lead with the free marijuana path where it fits. For sealing, the real gate is paying off court debt and restitution, not the filing fee — and a fee waiver may cover the filing cost.*

*Pull the DPS criminal history first so the offense classes (which drive the sealing waits) are confirmed.*

## 9. Criminal history (DPS) request process

Confirming the record establishes the offense class (which decides the sealing wait), the disposition, and the discharge dates.

### A. Statewide history — Arizona Department of Public Safety (DPS)

- Arizona DPS maintains the state criminal history repository; a person may obtain their own record (a “record review” via fingerprints) to confirm charges, classes, and dispositions.
- DPS updates its records when a court orders sealing, set-aside, or expungement.

### B. Court records — the convicting / charging court

- The superior, justice, or municipal court that handled the case holds the docket and is where the petition is filed; the public docket is also where sealing should later show restricted access.

### C. Federal — FBI Identity History Summary

- For records that may extend beyond Arizona, the FBI fingerprint-based Identity History Summary is the federal equivalent; Arizona's remedies reach Arizona records only.

#### VERIFY BEFORE RELYING

**DPS request methods and fees, the Judicial Branch petition forms, and the sealing rollout can change. The agent should verify the current DPS record-review process and fee and the current Arizona petition forms at the time of advising.**

#### AGENT GUIDANCE

*Frame the DPS record review as step one — it fixes the offense classes that decide the sealing waits and confirms the dispositions. Direct users to the court that handled the case for the petition and the docket.*

## 10. Sample petitions and completed examples

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Arizona filings go to the court that handled the case. The examples below show structure and key recitals. Names, dates, and identifiers are fictional and illustrative.

### Example A — Petition to Seal Records (A.R.S. § 13-911)

SUPERIOR COURT OF ARIZONA, MARICOPA COUNTY  
STATE OF ARIZONA v. ANDRE L. CARTER No. CR2018-001234

PETITION TO SEAL CASE RECORDS (A.R.S. § 13-911)

1. Petitioner: Andre L. Carter; DOB 07/22/1992.
2. On 03/14/2019 petitioner was convicted of Theft, a Class 6 felony (A.R.S. § 13-1802), in this case.
3. The offense is eligible for sealing (not a dangerous offense, dangerous crime against children, serious/violent/aggravated felony, deadly-weapon or serious-injury offense, or Class 1 felony).
4. Petitioner completed all NONMONETARY conditions and was discharged on 04/01/2020, and has paid all fines, fees, and restitution.
5. More than FIVE years have passed (Class 4-6 felony tier).
6. Petitioner requests an order sealing the arrest, conviction, and sentencing records under § 13-911. (Prosecutor served; victim notified.)

### Examples B & C — Set-aside and marijuana expungement

B. SET-ASIDE (A.R.S. § 13-905):

'Having fulfilled the conditions of probation/sentence and been discharged, petitioner applies to SET ASIDE the judgment of guilt, to be released from penalties and disabilities, for a CERTIFICATE OF SECOND CHANCE, and for restoration of firearm rights (offense not a serious offense under § 13-706).'

NOTE: the conviction remains visible, annotated 'set aside.'

C. MARIJUANA EXPUNGEMENT (A.R.S. § 36-2862, Prop 207):

'Petitioner was arrested/charged/convicted of possessing 2.5 ounces or less of marijuana (§ 13-3405/Prop 207 conduct). Petitioner requests EXPUNGEMENT under § 36-2862.' No waiting period; filing fee waived; the record is erased on grant.

### What each order does

A § 13-911 sealing order directs the court, DPS, and agencies to seal the arrest, conviction, and sentencing records, after which the person may deny the matter in most contexts. A § 13-905 set-aside order vacates the judgment of guilt and releases penalties (and may grant a Certificate of Second Chance and restore firearm rights), but the record stays public with a “set aside” note. A § 36-2862 expungement order erases the marijuana record. None of the three rewrites ADOT/MVD driving records.

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This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Arizona's three record-relief remedies and is not legal advice. Arizona provides set-aside (§ 13-905), record sealing (§ 13-911, effective 1/1/2023), and true expungement only for certain marijuana offenses (§ 36-2862, Prop 207); each has distinct eligibility, waits, and effects, and DUI/MVD records persist. The agent must verify the current text of A.R.S. §§ 13-911, 13-905, 13-910, and 36-2862, the exclusion definitions, the petition forms, DPS processes, and current fees before relying on any rule here.